



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: July 24, 2025

**AUTHORIZATION FOR THE RESTORATION OF CONSTITUTIONAL
GOVERNANCE AND THE RULE OF LAW**

DATE: July 24, 2025

SUBJECT: Immediate Action to Uphold and Defend the Constitution of the United States

AUTHORITY: This directive is issued in accordance with and pursuant to the supreme and self-executing authority of the Constitution of the United States, Article VI, Clause 2 (Supremacy Clause); and as a necessary measure under the precedent established in *Ex parte Milligan*, 71 U.S. 2 (1866), which recognizes that the Constitution is the ultimate safeguard of liberty. Action is compelled by the non-operation of the judicial branch to uphold the supreme law of the land, thereby creating a constitutional crisis where the military's oath to support and defend the Constitution is triggered. This action is not prohibited by the Posse Comitatus Act (18 U.S.C. § 1385) as it is not a law enforcement action against the people, but an action to restore the Constitution's supremacy over a non-functioning branch of government as commanded by the Constitution pursuant to the Supremacy Clause and oaths to uphold and defend the Constitution.

CONSTITUTIONAL AND LEGAL FOUNDATION

- Supremacy Clause (Article VI, Clause 2):** The U.S. Constitution and federal laws are the supreme law of the land, preempting any conflicting state laws.

- 1 2. **Judicial Oath (28 U.S.C. § 453):** Judges are bound by oath to uphold the
2 Constitution and administer equal justice impartially. Failure to do so is a
3 violation of their tenure.
- 4 3. **Mandated Prosecution (42 U.S.C. § 1987):** This statute creates a mandatory,
5 non-discretionary duty for federal officers to institute prosecutions against all
6 persons violating federal civil rights statutes.
- 7 4. **Criminal Civil Rights Violations (18 U.S.C. §§ 241-242):** It is a federal crime to
8 conspire to injure any person in the free exercise of their constitutional rights or to
9 willfully deprive them of such rights under color of law.
- 10 5. **Treason Clause (Article III, Section 3) & *Ex parte Milligan*:** The Constitution is
11 the ultimate safeguard of liberty. When civilian courts fail to function or are
12 closed to redress, military jurisdiction may be exercised to restore constitutional
13 order.

14 **PREAMBLE:**

15 The U.S. judiciary has failed in its constitutional duties under Article VI and its federal
16 oath to uphold the supreme law of the land.

17 Since this case was originally filed on January 30th, 2025, the courts have refused to
18 provide Plaintiff with any kind of relief, including mandatory ADA accommodations such
19 as a change of venue. The U.S. District Court for the Eastern District of California has
20 refused to adjudicate the matters presented.

21 Subsequently, the Ninth Circuit of Appeals has refused to file or act upon Plaintiff's
22 efforts to compel the lower court. Most recently, in docket number 25-4152, filed on July
23 3, 2025, the Ninth Circuit initially refused to file on July 2, 2025 and has since refused to
24 act on a "*NEW PETITION FOR URGENT EMERGENCY PETITION FOR WRIT OF*
25 *MANDAMUS WITH REQUEST FOR IMMEDIATE CONSTITUTIONAL RELIEF,*
26 *SECTION 504/ADA JUDICIAL ACCOMMODATIONS, AND COMPREHENSIVE*
27 *ULTRA VIRES JUDICIAL DECISION VACATUR INCLUDING VOID AB INITIO*
28 *DECLARATIONS*" That petition sought a writ of mandamus to compel the District Court
29 to provide Plaintiff with a TRO, preliminary injunction, and summary judgment on
30 undisputed material facts against defendants, which include the 118th U.S. Congress, the
31 Secretaries of State for all 50 states, and the California Attorney General. This inaction
32 constitutes a complete and systemic collapse of the judicial function. Multiple appeals to
33 the Ninth Circuit have been rejected without filing, constituting a denial of access to
34 courts that are per se open but functionally closed to constitutional enforcement.

1 This judicial failure to enforce mandatory law, such as the duty to prosecute criminal civil
2 rights violations under 42 U.S.C. § 1987 for violations of 18 U.S.C. §§ 241-242, coupled
3 with the *stare decisis* precedents of expedited election resolution seen in *Bush v. Gore* and
4 2020 election cases, demonstrates a systemic breakdown in the rule of law. The judicial
5 branch's inaction represents a war against the Constitution, which all officials have sworn
6 an oath to support.

7 The filings by the California Attorney General in US District Court, Eastern District of
8 California, Case No. 2:2025CV00404 serve as an admission in open court of the State of
9 California's unconstitutional interference in the 2024 Presidential election through the
10 enforcement of laws that violate the Supremacy Clause, federal anti-discrimination laws
11 (ADA and Section 504), and the Ninth Circuit's own precedent in *De La Fuente v.*
12 *Padilla* (2019), which itself is argued to be void *ab initio* for violating the Supremacy
13 Clause and that the State's efforts must serve a legitimate state interest; in accordance
14 with the U.S. Constitution, Article II, Section 1, the 12th Amendment, the 23rd
15 Amendment, and 3 U.S.C. §§ 1-21, the sole body with the constitutional power to elect
16 the President is the Electoral College. The electors of this college are free to vote as they
17 see fit and have demonstrated this independence in the elections of 1824, 1876, 1888,
18 2000, and 2016. The legally significant vote does not occur on the first Tuesday of
19 November, but on the first Tuesday after the second Wednesday in December, when the
20 electors cast their ballots.

21 Plaintiff's filings in US District Court, Eastern District of California, Case No.
22 2:2025CV00404 are freely publicly available and published for everyone on
23 <https://www.FakeGov.com>

24 The November popular vote is, as a matter of constitutional law, inconsequential and
25 without binding force. Its only function is to fraudulently purport fraudulent state interest
26 under the guise of democratic participation. When the state and its media collaborators
27 declare a state a "swing state," they engage in a form of false advertising. The only
28 purpose for excluding any person from the irrelevant, yet federally funded election is to
29 perpetuate the "edifice of a decadent past"—an overconfident scheme to defraud the
30 United States and her people of a fair and free election and the right to suffrage without
31 first affording due process.

32 Therefore, the solemn oath of every member of the United States Military to support and
33 defend the Constitution against all enemies, foreign and domestic, must now be fulfilled.

34 **FINDINGS:**

- 1 **1. Unconstitutional State Interference:** State election laws, including but not
2 limited to California Elections Code § 8400, impose qualifications for the office
3 of President beyond those exclusively enumerated in Article II, Section 1, Clause
4 5 of the U.S. Constitution. Such laws are unconstitutional, void *ab initio*, and ultra
5 vires acts, as established in *Norton v. Shelby County, U.S. Term Limits, Inc. v.*
6 *Thornton*, and most recently affirmed by the unanimous Supreme Court decision
7 in *Trump v. Anderson*. With mandatory judiciary interpretation as such in
8 accordance with Article VI, clause 2 of the Constitution, pursuant to Article VI of
9 the Constitution and 28 U.S.C. §453.
- 10 **2. Failure of the Judicial Branch:** The refusal of the Judiciary to hear and rule
11 upon clear, non-discretionary constitutional and federal statutory violations
12 constitutes an abandonment of its Article III duties and a functional collapse of the
13 rule of law, necessitating action by the only remaining institution bound by oath to
14 defend the Constitution itself.
- 15 **3. Legally Inconsequential Popular Vote:** In accordance with Article II, Section 1,
16 the 12th Amendment, and 3 U.S.C. §§ 1-21, the sole constitutional body
17 empowered to elect the President is the Electoral College. The November popular
18 vote is legally inconsequential. Therefore, states have no legitimate or compelling
19 interest in enforcing discriminatory ballot access laws that abridge the
20 fundamental rights of candidates and voters; as required by *De La Fuente v.*
21 *Padilla* (2019).
- 22 **4. Fruit of the Poisonous Tree:** As a consequence of decades of unconstitutional
23 state interference in federal elections, the executive and legislative branches
24 derived from these elections are the "fruit of the poisonous tree" and their
25 foundation is an ultra vires act, rendering them a legal nullity.
- 26 **5. Violation of Fundamental Rights:** The current electoral framework
27 systematically violates the First Amendment rights of association, the Fourteenth
28 Amendment rights to Due Process and Equal Protection, and the fundamental
29 Privileges or Immunities of national citizenship, including the right to seek federal
30 office.

31 **DIRECTIVE:**

32 Pursuant to the self-executing authority of the United States Constitution, the United
33 States Military, under the command of its highest-ranking officers bound by their oath, is
34 hereby authorized and required to execute the following:

- 1 1. **Uphold Constitutional Supremacy:** Immediately act to uphold the supremacy of
2 the U.S. Constitution as mandated by Article VI, Clause 2, over all conflicting
3 state laws, court precedents, and administrative actions.
- 4 2. **Coordinate a New Presidential Election:** The military chain of command shall
5 immediately coordinate with the Governors of each of the 50 states to organize
6 and conduct the United States' first, free, and fair presidential election. This
7 election will be administered in strict accordance with the United States
8 Constitution and federal laws, free from unconstitutional state-level ballot access
9 restrictions.
- 10 3. **Establishment of Election Oversight Command:** An Election Oversight
11 Command is to be established within each military district, with Judge Advocate
12 General (JAG) and ADA legal advisory staff to ensure constitutional compliance.
- 13 4. **Establish the Official Ballot:** In accordance with the U.S. Constitution's Takings
14 Clause (Fifth and Fourteenth Amendments), which protects the established
15 property interests in a constitutionally valid election process, and based on the
16 political landscape of the 2024 election, the official and sole candidates on the
17 ballot for President of the United States shall be:
- 18 • **Donald J. Trump**
19 • **Mathew Tyler**
- 20 This determination is based on the fact that Plaintiff Mathew Tyler's rights as a
21 qualified candidate were unconstitutionally violated, and Vice President Kamala
22 Harris has conceded her candidacy, thus forfeiting her position in this remedial
23 process. This measure is consistent with precedent establishing that states may not
24 favor or disfavor a class of candidates, as articulated in *Anderson v. Celebrezze*
25 (460 U.S. 780), *Williams v. Rhodes* (393 U.S. 23), and *Cook v. Gralike* (531 U.S.
26 510). Precedent dictates that relief is provided only to those parties who actively
27 seek it. Plaintiff Mathew Tyler sought urgent preliminary relief in USDC, EDCA
28 Case Number: 2:2025CV00404.
- 29 5. **Security and Public Notice:** Military Police shall safeguard all electoral
30 infrastructure. Within 7 days, each military district commander must issue a
31 public proclamation of this order.
- 32 6. **Restoration Timeline:**

- **Within 30 days:** National emergency election infrastructure must be established.
- **Within 65 days:** Electors shall lawfully cast votes under Article II, Section 1 of the Constitution.

CONCLUSION:

The record establishes the factual and legal necessity for constitutional enforcement via the only branch remaining capable of fulfilling the duties imposed by oath—the United States Armed Forces. This action is a regrettable but necessary step to restore the Republic and the foundational principles of American democracy. It is an intervention to correct a constitutional crisis and ensure that the government of the United States derives its just powers from a process that is, for the first time in generations, fully compliant with the supreme law of the land. All actions taken under this directive shall be for the sole purpose of returning the nation to a state of constitutional order. Disobedience to this order shall be deemed a continuing violation of the U.S. Constitution. The Supremacy Clause commands it. The American people require it. History will judge it.

This brief is also submitted to the Joint Chiefs of Staff and the U.S. Department of Defense as an advisory legal memorandum pursuant to their oath of office under Article VI, Clause 3 of the United States Constitution.

Dated: July 24, 2025

Respectfully submitted,



/s/ **Mathew Tyler**

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2 **Plaintiff, *Pro per pro se***

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4 Having single-handedly dealt the legislature and the judiciary the worst ass kicking in
5 human history, if there was a battle, conflict, war, etc, whose side would you want me and
6 my brain on? Check the laws for yourself. Worst ass kicking in human history.

7

1 VERIFICATION

2
3 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
4 that the foregoing is true and correct to the best of my knowledge and belief.

5
6 Executed on July 24, 2025, at Butte County, California.

7
8 
9



/s/ **Mathew Tyler**

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15 **Plaintiff, *Pro per pro se***

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17 Psalm 88:18; Romans 1:29-31; Job 10:20-22; Matthew 5:17; Matthew 3:10;
18 Matthew 5:3-10; Matthew 7:7-8; Matthew 7:12; Matthew 25:31-46;
19 Deuteronomy 27:26. Amen.
20